

25LBCV01997 25LBCV01997

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-07

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Case Number: 25LBCV01997 Hearing Date: July 7, 2026 Dept: S27

This case is currently set for trial on 9/14/26. Defendant made a reservation for a motion for summary judgment, setting it on the first available date for hearing, which is 10/29/26. Defendant seeks an order continuing the trial date until at least thirty days after the MSJ hearing date; specifically, Defendant seeks to continue trial to 11/30/26 or any date convenient for the Court.

To date, no party has filed opposition to the motion. The Court, in ruling on the motion, is guided by the case of Wells Fargo Bank v. Superior Court. The Court therein held that a trial court may not refuse to hear a summary judgment motion filed within the time limits of section 437c. (Wells Fargo Bank, N.A. v. Superior Court (1988) 206 Cal.App.3d 918, 919.) Local rules and practices may not be applied so as to prevent the filing and hearing of such a motion. (Id.; Sentry Ins. Co. v. Superior Court (1989) 207 Cal.App.3d 526, 529.) "We are sympathetic to the problems the trial courts experience in calendaring and hearing the many motions for summary judgment. However, the solution to these problems cannot rest in a refusal to hear timely motions." (Id., at p. 530.)

In light of the lack of opposition to the motion, the motion is granted.

The trial date is advanced to today's date and continued from 9/14/26 to Monday, 11/30/26 at 9:30 a.m. in Department S27 of the Long Beach Courthouse.

The FSC date is advanced to today's date and continued from 9/11/26 to

Friday, 11/27/26 at 8:30 a.m. in Department S27. Discovery and discovery motion cut-off dates are NOT continued to reflect the new trial date.

Defendant is ordered to give notice.